

22STCV41098 22STCV41098

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-09

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Case Number: 22STCV41098 Hearing Date: July 9, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:01 PM on July 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 8, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that a grant deed was forged conveying Plaintiff's properties, which was then encumbered, all without Plaintiff's authorization. Plaintiff brings a quiet title action.

Defendants

Wilshire Quinn Income Fund REIT, LLC and Wilshire Quinn Income Fund, LLC move for the issuance of letters rogatory for Bank of Montreal.

TENTATIVE RULING

Defendants

Wilshire Quinn Income Fund REIT, LLC and Wilshire Quinn Income Fund, LLC's motion for issuance of letters rogatory for the purpose of deposing and acquiring records and documents from Bank of Montreal (BMO), located in Toronto, Canada is GRANTED.

ANALYSIS

Motion For Issuance
of Letters Rogatory

Defendants Wilshire Quinn Income Fund REIT, LLC and Wilshire Quinn Income Fund, LLC, for the purpose of deposing and acquiring records and documents from Bank of Montreal (BMO), located in Toronto, Canada, will request that the Court: (1) grant Defendants' Motion for Issuance of Letters Rogatory; and (2) issue the Letters Rogatory, submitted herewith.

Civ. Proc. Code,
§ 2027.010 provides:

(a) Any party may obtain discovery by taking an oral deposition, as described in Section 2025.010, in a foreign nation. Except as modified in this section, the procedures for taking oral depositions in California set forth in Chapter 9 (commencing with Section 2025.010) apply to an oral deposition taken in a foreign nation.

. . .

(c) If a deponent is not a party to the action or an officer, director, managing agent or employee of a party, a party serving a deposition notice under this section shall use any process and procedures required and available under the laws of the foreign nation where the deposition is to be taken to compel the deponent to attend and to testify, as well as to produce any document or tangible thing for inspection, copying, and any related activity.

(d) A deposition taken under this section shall be conducted under the supervision of any of the following:

(1) A person

who is authorized to administer oaths or their equivalent by the laws of the United States or of the foreign nation, and who is not otherwise disqualified under Section 2025.320 and subdivisions (b) to (f), inclusive, of Section 2025.340.

(2) A person

or officer appointed by commission or under letters rogatory.

(3) Any

person agreed to by all the parties.

(e) On motion of the party seeking to take an oral

deposition in a foreign nation, the court in which the action is pending shall issue a commission, letters rogatory, or a letter of request, if it determines that one is necessary or convenient. The commission, letters rogatory, or letter of request may include any terms and directions that are just and appropriate. The deposition officer may be designated by name or by descriptive title in the deposition notice and in the commission. Letters rogatory or a letter of request may be addressed: "To the Appropriate Judicial Authority in [name of foreign nation]."

(Bold emphasis added.)

Defendants seek to obtain records from

BMO as Defendants believe that part of the subject \$5,700,000 flowed into a BMO account of Dupeo Investments, Inc., a corporation founded by Ms. April Ferguson, who was believed to have been involved in the fraudulent scheme. Specifically, Defendants believe Ms. Ferguson is a key witness in the case, who provided a number of documents during the loan application process, including the actual loan application, signed leases with alleged tenants in the buildings used to secure the loan, and a tax return. (McCaskill Decl. at ¶6.) Defendants further believe that Ms. Ferguson forwarded emails to the loan officer from the person identifying themselves as Plaintiff and her property manager. (Id., ¶7.) Ms. Ferguson is believed to have been paid a 2% loan origination fee from the loan proceeds totaling \$114,000 through a BMO account of Dupeo Investment, Inc. (Id., at ¶8.) Records concerning the flow of the alleged fraudulently obtained proceeds to a key witness in the case are highly relevant to the instant action and are maintained by BMO, which necessitates Defendants to seek the issuance of the Letters Rogatory. (McCaskill Decl. at ¶9.) BMO has advised

that it requires a Canadian Court Order to release records. (McCaskill Decl. at ¶11.)

The Court finds

that issuance of letters rogatory is necessary in order for Defendants to obtain evidence about the person who may be responsible for the underlying forgeries of which Plaintiff complains.

The issuance

would be in accordance with the laws of Canada.

Order for examination of witness in Canada

46 (1) If, on an application for that purpose, it is made to appear to any court or judge that any court or tribunal outside Canada, before which any civil, commercial or criminal matter is pending, is desirous of obtaining the testimony in relation to that matter of a party or witness within the jurisdiction of the first mentioned court, of the court to which the judge belongs or of the judge, the court or judge may, in its or their discretion, order the examination on oath on interrogatories, or otherwise, before any person or persons named in the order, of that party or witness accordingly, and by the same or any subsequent order may command the attendance of that party or witness for the purpose of being examined, and for the production of any writings or other documents mentioned in the order and of any other writings or documents relating to the matter in question that are in the possession or power of that party or witness.

(Canada Evidence

Act (R.S.C., 1985 c. C-5, § 46(1)[1].)

As such, the

motion for issuance of letters rogatory is GRANTED.

[1] <https://laws.justice.gc.ca/eng/acts/C-5/page-7.html#:~:text=46%20%281%29%20If%2C%20on%20an%20application%20for%20that, possession%20or%20power%20of%20that%20party%20or%20witness.>